

25STCV27861 25STCV27861

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-08

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Case Number: 25STCV27861 Hearing Date: September 8, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT 309

TENTATIVE

RULING

LUIS GUZMAN, et al.

vs.

GENERAL MOTORS, LLC

Case No.: 25STCV27861

Hearing Date: September 8, 2026

Defendant's

motion for an order for compliance requiring Plaintiffs to appear and comply with initial deposition is MOOT. Plaintiffs are each sanctioned, jointly and severally with counsel, \$1,500.00.

On 9/23/2025,

Plaintiffs Luis and Melisa Guzman (collectively, Plaintiffs) filed suit against General Motors, LLC (Defendant or GM), alleging violations of the Song-Beverly Consumer Warranty Act (SBA).

On

7/31/2026, Defendant moved to compel Plaintiff's compliance pursuant to CCP section 871.26.

Discussion

Defendant

moves for an order for compliance requiring Plaintiffs to appear and comply with the initial deposition under Code of Civil Procedure (CCP) section 871.26, subdivision (c)(1).

The enactment

of Assembly Bill 1755 was codified in Chapter 12 of Title 10 to Part 2 of the Code of Civil Procedure (herein, Chapter 12), which went into effect 1/1/2025. (See CCP § 871.20, et seq.) In passing Assembly Bill 1755, the legislature enacted provisions that require the parties to participate in initial depositions. (CCP §871.26, subd. (c).) The newly enacted provisions are designed to reduce court docket congestion and promote settlement by temporarily staying all discovery (other than the initial disclosure and document exchanges and initial depositions) until an early mediation is completed. (CCP § 871.26, subd. (d).)

In

opposition, Plaintiffs' counsel argues that the motion is moot as the parties have confirmed in writing that Plaintiffs' depositions will take place on 9/11/2026. Plaintiffs also indicate that they repeatedly offered deposition dates and worked with Defendant to identify dates that were mutually convenient. (Smith Smith Decl. ¶ 6, Exh. A.)

However, the

Court finds Plaintiffs' coordination efforts were insufficient, and constitute noncompliance.

Based on the

foregoing, Defendant's motion for an order for compliance requiring Plaintiffs to appear and comply with initial deposition is moot. Plaintiffs are each sanctioned, jointly and severally with counsel, \$1,500.00.

It is so ordered.

Dated: September
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.